

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: _____

Date Purchased: _____

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SHAQWAN ROBINSON,

SUMMONS

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

The basis of venue is:
Place of Occurrence

THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

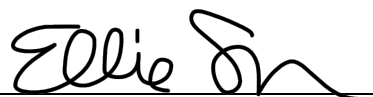
Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 10, 2024



Ellie A. Silverman, Esq.
Ellie Silverman Law PC
745 5th Avenue, Suite 500
New York, NY 10151

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908)**, 1 Police Plaza Path, New York, NY 10038;
3. **SERGEANT STANIS KUSHNIR (TAX ID #947764)**, 1 Police Plaza Path, New York, NY 10038;
4. **POLICE OFFICER MATTHEW COFFARO (TAX ID #969593)**, 1 Police Plaza Path, New York, NY 10038;
5. **POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307)**, 1 Police Plaza Path, New York, NY 10038;
6. **POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979)**, 1 Police Plaza Path, New York, NY 10038.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAQWAN ROBINSON,

Plaintiff,

-against-

Index No.: _____

Date
Purchased: _____

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.

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Plaintiff SHAQWAN ROBINSON by his attorneys ELLIE SILVERMAN LAW PC
complaining of Defendants, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff SHAQWAN ROBINSON was, and still is, an individual residing in New York.
2. Defendant THE CITY OF NEW YORK was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant THE CITY OF NEW YORK was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is

authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by NEW YORK CITY POLICE DEPARTMENT.

4. Defendants, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department municipal agency of Defendant THE CITY OF NEW YORK.
5. Defendants, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant THE CITY OF NEW YORK were acting for, and on behalf of, and with the power and authority vested in them by Defendant THE CITY OF NEW YORK and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

6. On December 18, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant THE CITY OF NEW YORK and that, thereafter, said Comptroller for Defendant THE CITY OF NEW YORK refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. That on or about May 17, 2024, Pursuant to General Municipal Law a 50h hearing was held.
8. Defendants POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 are sued in their official and individual capacities.

STATEMENT OF FACTS

9. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
10. On or about July 13, 2023, at approximately 2:30 p.m., Plaintiff SHAQWAN ROBINSON became a victim of police misconduct, police brutality and vicious assault, while he was lawfully present at the subway station at or around Levonia Street and Rockaway Avenue located in the County of Kings, City and State of New York.

11. Defendants approached plaintiff and without giving any explanation threw him the ground and essentially “jumped” on Plaintiff without any attempt to first ascertain any information, ask questions or assess the situation.
12. The Officers pushed, kneeled, grabbed, yanked and held Plaintiff on the ground, handcuffed him. At no point police officers provided any information to Plaintiff regarding the reason for this arrest.
13. Defendant Police Officers ignored Plaintiff's complaints that the handcuffs are too tight and he is in pain.
14. Plaintiff was then transported to the 73rd Precinct, bruised, bloody and in pain, where he was searched, photographed, fingerprinted and/or otherwise processed and placed in a holding cell.
15. At no point in time were Plaintiff's Miranda Rights read to him.
16. After spending approximately twelve (12) hours in 73rd Precinct, Plaintiff was then transported to the Central Booking, where he was once again processed and placed in a holding cell.
17. It was not for approximately thirteen (13) hours until he was brought in front of the judge where his charges were heard and he was released from custody on his own recognizance (ROR).
18. After the release, Plaintiff was forced to attend several more Court appearances until October 17, 2023 when the District Attorney conceded that the police involved were never able to provide sufficient evidence despite them making continued promises to the District Attorney, which ultimately turned out to be lies.

19. All charges against Mr. Robinson were dropped and the case was dismissed and sealed on that same day by motion of the District Attorney.
20. There is no question that this ordeal has greatly affected him mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff SHAQWAN ROBINSON has suffered substantial actual damages including and not limited to, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of economic opportunity, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
MALICIOUS PROSECUTION

21. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
22. Defendants' actions with regard to the institution and maintenance of the criminal prosecution were committed wantonly and with a reckless disregard for whether a reasonable ground of suspicion existed, supported by the circumstances, which would lead a reasonably prudent person to believe that Plaintiff had committed a crime.
23. By the actions described above, Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 initiated a

prosecution against Plaintiff SHAQWAN ROBINSON.

24. By the actions described above, Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 caused Plaintiff to be maliciously prosecuted without any probable cause, without reasonable suspicion, without any proper claims, without any right or authority to do so, illegally and with malice.
25. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process and intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of their misconduct.
26. Defendants acted with intent to do harm to Plaintiff without excuse or justification.
27. The legal process was terminated in favor of Plaintiff.
28. A timely Notice of Claim was filed with the City of New York as malicious prosecution was claimed in the Notice of Claim.
29. By the actions described above, Defendants THE CITY OF NEW YORK, POLICE OFFICER

ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 lacked probable cause to believe the proceeding could succeed.

30. In fact, no probable cause existed to support a conviction and thus, actual malice by Defendants may additionally be inferred by the lack thereof.
31. The charges were ultimately terminated in favor of Plaintiff SHAQWAN ROBINSON.
32. As a result of the foregoing, Plaintiff SHAQWAN ROBINSON was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
UNLAWFUL STOP, QUESTION AND SEARCH

33. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
34. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
35. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
36. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
37. Defendants were at all times agents, servants, and employees acting within the scope of their

employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

38. The City, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
39. As a result of the foregoing, Plaintiff SHAQWAN ROBINSON was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
UNLAWFUL/UNREASONABLE SEIZURE AND DEPRIVATION OF LIBERTY

40. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
41. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

43. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

44. The defendants issued criminal legal process against Plaintiff based on an improper or malicious motive.
45. The defendants acted with improper purpose in arresting and continuing to prosecute Plaintiff in order to conceal their own misconduct, and in connection with his false arrest and malicious prosecution, in order to escape disciplinary charges and potential loss of employment. Courts have found that a desire to protect one's employment can constitute a collateral purpose. *See, e.g., Hoyos*, 999 F. Supp. 2d at 391; *Douglas*, 595 F. Supp. 2d at 344 (S.D.N.Y. 2009) ("Fabricating assault charges to save one's job could be abuse of process, however, because 'safeguarding one's own employment lies outside the legitimate goal of criminal process.'") (*quoting Hernandez v. Wells*, No. 01 Civ. 4376, 2003 WL 22771982, at *9 (S.D.N.Y. Nov. 24, 2003)).
46. The defendants have maintained an active role in the prosecution by having the plaintiff arraigned, filling out arrest reports and corroborating documents and signing the complaint.
47. As a direct and proximate result of this unlawful conduct, Plaintiff sustained emotional and psychological damages, stress, anxiety, court costs, legal fees, humiliation and embarrassment and other damages alleged herein.

AS AND FOR A FIFTH CAUSE OF ACTION
NEGLIGENCE

48. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
49. Upon information and belief, a Notice of Claim was timely filed against the City.
50. THE CITY OF NEW YORK is responsible based on the theory of *respondeat superior*.
51. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA

(SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

52. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

53. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
54. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised and trained Defendants POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 and its employees.
55. A timely Notice of Claim was filed by Plaintiff.
56. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific

psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

57. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
58. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
59. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
DERELICTION OF DUTY. DELIBERATE INDIFFERENCE
and FAILURE TO INTERVENE

60. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
61. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER

MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.

62. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
63. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
64. At the time of the incidents, Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 were observing and aware of the wrongful acts against Plaintiff.
65. At the time of the incident, Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 neglected to intervene on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.
66. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER

MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

67. Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.

68. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS

69. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

70. Courts have held that continuous and coercive harassment *can* establish an IIED cause of action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678–679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v.*

Fischbein Olivieri Rozenholc & Badillo, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986)(baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where “[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff's conduct or discuss the basis of those complaints with others.”).

71. A timely Notice of Claim was filed with the City of New York.
72. Because many of these “last actionable acts” occurred within the statute of limitations period, the action is not time-barred. *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under general principles of New York law, the statute of limitations “ ‘runs from the commission of the last wrongful act.’ ”)(citations omitted).
73. The emotional harm and/or distress continue to present day. Hon. Denise L. Cote reached a similar conclusion on this issue. *Bonner v. Guccione*, 94 Civ. 7735, slip. op. at 7–15, 1996 WL 22355 (S.D.N.Y. January 17, 1996)(holding where last act of an uninterrupted course of actionable conduct falls within statute of limitations, plaintiff permitted to assert IIED claim for entire course of conduct, even those acts beyond the statute of limitations). *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under New York law where certain continuous wrongs are alleged, the last wrongful act triggers the statute of limitations).
74. Under the color of state law, Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE

OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.
76. Defendants used excessive force against Plaintiff and further compounded their wrongdoings by brutalizing him, falsely arresting him, continuing the malicious prosecution and filing false civil complaints against him.
77. As a result of the multiple acts, including but not limited to the acts briefly outlined, Plaintiff has suffered tremendously, experienced anxiety attacks, required regular therapy and has been emotionally distressed up to the present day.
78. Said police retaliation and false claims as outlined in the facts and below causes of action comprising this complaint has further contributed to Plaintiff's emotional harm and distress.
79. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.
80. THE CITY OF NEW YORK is responsible based on the theory of *respondeat superior*.
81. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical

injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

82. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
83. By the actions described above, Defendant THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
84. After being falsely arrested and brutalized, Plaintiff was wrongfully confined for more than thirteen (13) months.
85. Plaintiff continued to be deprived of his liberty with every court appearance he was forced to attend.
86. Defendants herein falsely arrested and prosecuted Plaintiff in order to justify their unlawful actions.
87. THE CITY OF NEW YORK is responsible based on the theory of *respondeat superior*.

88. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY AND ASSAULT

89. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
90. A timely Notice of Claim was filed by Plaintiff.
91. THE CITY OF NEW YORK is responsible based on the theory of *respondeat superior*.
92. Defendant THE CITY OF NEW YORK is vicariously liable to Plaintiff for the individual Defendant's POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 common tort of battery and assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
93. Defendants committed battery on Plaintiff when he was under their care and custody.
94. Defendants committed a battery on Plaintiff as described above, including but not limited to by brutally assaulting him, placing handcuffs on him, by withholding/denying necessary medical attention, by incarcerating him for more than twenty four (24) hours, strip searching him and placing him into a dirty, infested cell where he was held against his will.

95. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
96. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
97. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions.
98. The act of denying, proper attention, psychological and medical treatment also amounted to a battery.
99. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer physical and emotional injury and that he was otherwise damaged.
100. Plaintiff was continuously subjected to excessive and unnecessary and unreasonable acts of physical force, excessive and unreasonable detention, and to unnecessary and unreasonable and excessive terms and conditions of her detention at the hands of Defendants under the color of state law, in violation of her rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.
101. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great

humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TWELFTH CAUSE OF ACTION
VIOLATION OF DUE PROCESS & FABRICATION OF EVIDENCE

102. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
103. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
104. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
105. Plaintiff was denied the minimal civilized measures of life's necessities.
106. Plaintiff was exposed to poor sanitation, infestation, inadequate nutrition, requests for medical attention, phone calls and use of bathroom facilities, and other unacceptable and inhumane scenarios while imprisoned at the hands of Defendants.
107. Defendants withheld exculpatory evidence from the prosecutors by failing to disclose evidence inconsistent with Plaintiff's guilt, falsely reported facts in the reports, maliciously concealed material evidence, falsely complained of injuries in a Verified Civil Complaint and other violations.
108. Defendants falsely prosecuted Plaintiff, falsely reported facts intentionally to mislead the criminal proceedings and fabricated evidence. ("Because evidence fabrication serves to both improperly charge and/or arrest a plaintiff as well as unfairly try him, the *Coffey* violation, in its essence, involves aspects of both the Fourth Amendment and procedural due process."); *Myers v. Cnty. of Nassau*, 825 F.Supp.2d 359, 367 (E.D.N.Y. 2011) (noting

that when a police officer turned over fabricated evidence to the prosecutor, such conduct can be redressed, not as a *Brady* violation, but as a deprivation of liberty on the basis of false and fabricated evidence).

109. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of New York law, rules and regulations.
110. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER
42 U.S.C. § 1983

111. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
112. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants THE CITY OF NEW YORK, POLICE OFFICER ANTHONY M. CARAVANA (SHIELD #4908), SERGEANT STANIS KUSHNIR (TAX ID #947764), POLICE OFFICER MATTHEW COFFARO (TAX ID #969593), POLICE OFFICER RIGHWANUL RABBE (TAX ID #969307), POLICE OFFICER CHRISTOPHER LYONS (TAX ID #967979) and POLICE OFFICERS JANE/JOHN DOE #1-5 acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of Plaintiff's due process

clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

113. At all times material to this complaint, Defendant THE CITY OF NEW YORK acting through its police department and through Defendants had in effect actual and/or de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
114. Defendant THE CITY OF NEW YORK being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences.
115. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and Police Officers and defendant THE CITY OF NEW YORK, including but not limited to the NYPD.
116. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff without probable cause and then kept him in unsanitary and inhuman conditions.
117. In this case, there was: Police withholding evidence and/or misrepresenting or falsifying evidence; overall inadequate police work and inadequate prosecutorial work-up of the case; and permitting and/or enforcing false arrest, malicious prosecution and placing Plaintiff in unsafe and unconstitutional conditions of confinement.
118. The aforementioned customs, practices, procedures and rules of the City and NYPD include,

but are not limited to: 1) arresting persons known to be innocent in order to meet “productivity goals”; 2) falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals; 3) failing to supervise, train, instruct and discipline police officers thereby encouraging their misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers’ jurisdiction; 4) discouraging police officers from reporting the corrupt or unlawful acts of other officers; 5) retaliating against officers who report police misconduct; and 6) failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented with proper supervision.

119. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints or otherwise falsifying or fabricating evidence, are further evidenced, inter alia, by The Mollen Commission, which concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system.
120. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the failure to supervise, train, instruct, and discipline police officers, encouraging their misconduct, and exhibiting deliberate indifference towards the constitutional rights of persons with whom officers come into contact are further evidenced in response to the Honorable Judge Weinstein's ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noticed a "widespread... custom or policy by the city approving illegal conduct" such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."

121. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
INDIVIDUAL DEFENDANT OFFICER'S VIOLATION OF PLAINTIFF'S AC 8-802 RIGHTS

122. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
123. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
124. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
125. The defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining him and further causing his detention for approximately twenty four hours (24) hours in total.
126. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
INDIVIDUAL DEFENDANT OFFICER'S FAILURE TO INTERVENE IN VIOLATION OF
PLAINTIFF'S AC 8-802 RIGHTS

127. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

128. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
129. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
130. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
131. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
CITY-EMPLOYER'S LIABILITY FOR DEFENDANT OFFICER'S VIOLATION OF
PLAINTIFF'S AC 8-802 RIGHTS

133. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
134. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.
136. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
137. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
138. The defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining plaintiff and further causing his detention for approximately twenty four (24) hours in total.
139. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

AS AND FOR A SEVENTEETH CAUSE OF ACTION
CITY-EMPLOYER'S LIABILITY FOR DEFENDANT OFFICER'S FAILURE TO INTERVENE
IN VIOLATION OF PLAINTIFF'S AC 8-802 RIGHTS

140. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
141. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.
142. The City of New York, as the employer of the covered individual defendant officers, is liable

to Plaintiff for the wrongdoing of the covered individual defendant officers.

143. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
144. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
145. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 - 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
146. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
147. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION

VIOLATION OF ARTICLE I, § 5 and 12 OF THE NEW YORK STATE CONSTITUTION

148. Plaintiff SHAQWAN ROBINSON repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
149. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 5, 6, 8, 9, 11, and 12, and including the following rights:

- i. Excessive bail shall not be required, nor excessive fines imposed, nor shall cruel and unusual punishments be inflicted, nor shall witnesses be unreasonably detained;
- ii. freedom from unreasonable search and seizure of his person and property;
- iii. freedom from arrest without probable cause;
- iv. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- v. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- vi. freedom from deprivation of liberty without due process of law.

150. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

151. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

152. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual defendants and any damages they caused under the doctrine of respondeat superior.

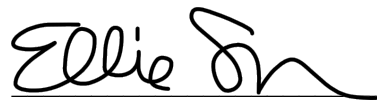
153. As a result of the foregoing, Plaintiff SHAQWAN ROBINSON was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
sanctions
- d. Such other and further relief as this court may deem just and proper,
including injunctive and declaratory relief.

Dated: New York, New York
October 10, 2024

Yours, etc.

A handwritten signature in black ink, appearing to read "Ellie Silverman", written over a horizontal line.

Ellie A. Silverman, Esq.
Ellie Silverman Law PC
Attorneys for Plaintiff
SHAQWAN ROBINSON
745 5th Avenue, Suite 500
New York, New York 10151

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am Principal of Ellie Silverman Law PC, attorneys of record for Plaintiff SHAQWAN ROBINSON. I have read the annexed SUMMONS AND COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
October 10, 2024



Ellie A. Silverman, Esq.